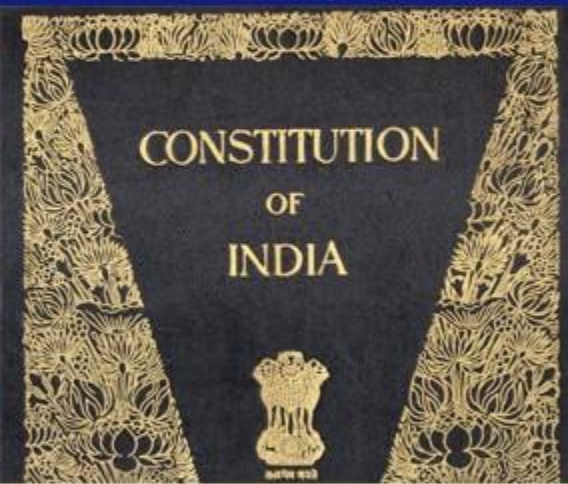


INDIAN POLITY



MODULE - 34

FUNDAMENTAL RIGHTS

▪ **ARTICLE 20 & 21**

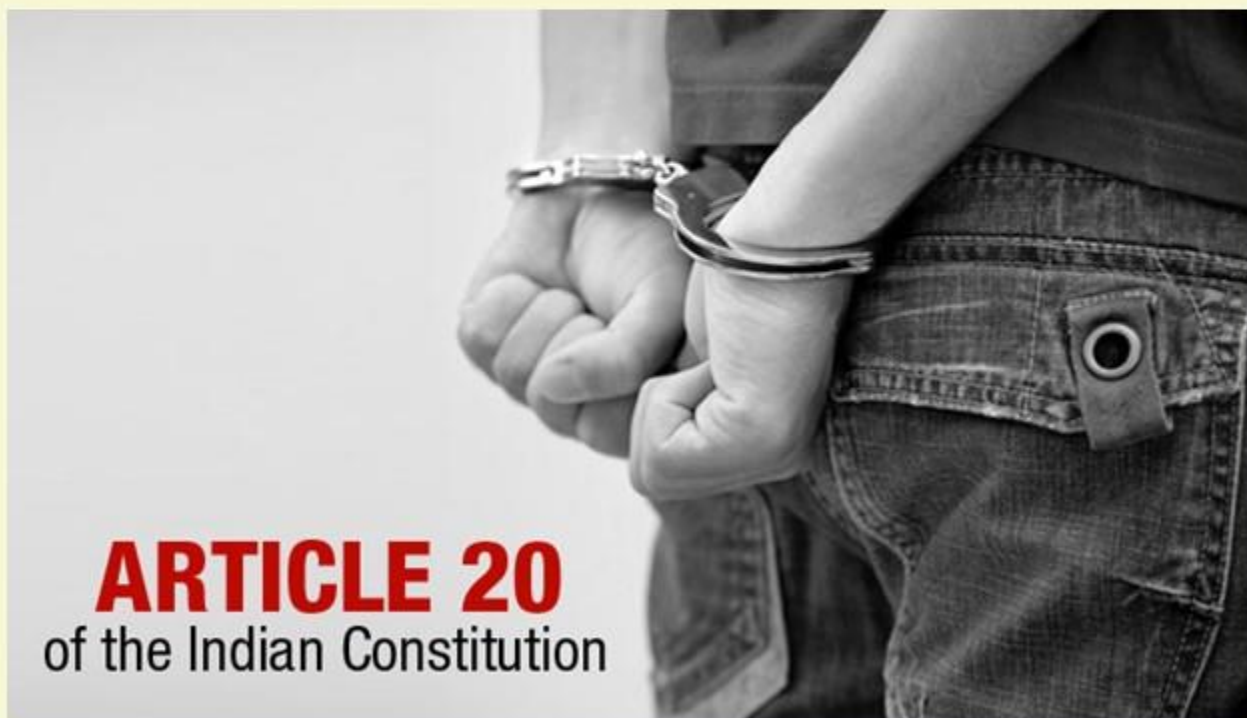
FUNDAMENTAL RIGHTS

PROTECTION IN RESPECT OF CONVICTION FOR OFFENCES

ARTICLE 20

1

Article 20 grants protection against arbitrary and excessive punishment to an accused person, whether citizen or foreigner or legal person like a company or a corporation.



ARTICLE 20
of the Indian Constitution

FUNDAMENTAL RIGHTS

PROTECTION IN RESPECT OF CONVICTION FOR OFFENCES

ARTICLE 20



No ex-post-facto law

2

It contains three provisions in that direction.

- **No ex-post-facto law:** No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act, nor subjected to a penalty greater than that prescribed by the law in force at the time of the commission of the act.
- **No Double Jeopardy:** No person shall be prosecuted and punished for the same offence more than once.
- **No Self-Incrimination:** No person accused of any offence shall be compelled to be a witness against himself

FUNDAMENTAL RIGHTS

PROTECTION IN RESPECT OF CONVICTION FOR OFFENCES

ARTICLE 20



No Double Jeopardy

2

It contains three provisions in that direction.

- **No ex-post-facto law:** No person shall be Convicted of any offence except for violation of a law in force at the time of the commission of the act, nor subjected to a penalty greater than that prescribed by the law in force at the time of the commission of the act.
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FUNDAMENTAL RIGHTS

PROTECTION IN RESPECT OF CONVICTION FOR OFFENCES

ARTICLE 20



No Self-Incrimination

2

It contains three provisions in that direction.

- **No ex-post-facto law:** No person shall be Convicted of any offence except for violation of a law in force at the time of the commission of the act, nor subjected to a penalty greater than that prescribed by the law in force at the time of the commission of the act.
- **No Double Jeopardy:** No person shall be prosecuted and punished for the same offence more than once.
- **No Self-Incrimination:** No person accused of any offence shall be compelled to be a witness against himself

FUNDAMENTAL RIGHTS

PROTECTION IN RESPECT OF CONVICTION FOR OFFENCES

ARTICLE 20

3 An ex-post-facto law is one that imposes penalties retrospectively (retroactively), that is, upon acts already done or which increases the penalties for such acts.



4 The enactment of such a law is prohibited by the first provision of Article 20. However, **this limitation is imposed only on criminal laws and not on civil laws or tax laws.**

5 In other words, **a civil liability or a tax can be imposed retrospectively.** Further, this provision prohibits only conviction or sentence under an ex-post-facto criminal law and not the trial thereof.

FUNDAMENTAL RIGHTS

PROTECTION IN RESPECT OF CONVICTION FOR OFFENCES

ARTICLE 20



6 Finally, the protection (immunity) under this provision **cannot be claimed in case of preventive detention** or demanding security from a person.

7 The protection against double jeopardy is available only in **proceedings before a court of law or a judicial tribunal**.

8 In other words, it is not available in proceedings before **departmental or administrative authorities** as they are not of judicial nature.

FUNDAMENTAL RIGHTS

PROTECTION IN RESPECT OF CONVICTION FOR OFFENCES

ARTICLE 20



9 The protection against self-incrimination extends to **both oral evidence and documentary evidence.**

10 However, it does not extend to

- i. Compulsory production of material objects.
- ii. Compulsion to give thumb impression, specimen signature, blood specimens and
- iii. Compulsory exhibition of the body.

11 Further, **it extends only to criminal proceedings** and not to civil proceedings or proceedings which are not of criminal nature.

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21



A.K.GOPALAN

1 Article 21 declares that no person shall be deprived of his life or personal liberty except according to procedure established by law. **This rights is available to both citizens and non-citizens.**

2 In the famous Gopalan Case (1950), the Supreme Court has taken a **narrow interpretation of the Article 21.**

3 It held that the protection under Article 21 is available **only against arbitrary executive action and not from arbitrary legislative action.**

INDIAN POLITY

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21



4 This means that the State can deprive the **right to life and personal liberty of a person based on a law.**

5 This is because of expression “procedure established by law” in Article 21, which is different from the expression “due process of law” contained in the American Constitution.

6 Hence, the validity of a law that has prescribed a procedure cannot be questioned on the ground that the law is unreasonable, unfair or unjust.

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21



MANEKA GANDHI

- 7** Secondly, the Supreme Court held that the “personal liberty” means only liberty relating to the person or body of the individual.
- 8** But, in **Menaka Case (1978)**, the Supreme Court overruled its judgment in the Gopalan case by taking a wider interpretation of the Article 21.
- 9** Therefore, it ruled that the right to life and personal liberty of a person can be deprived by a law provided the procedure prescribed by that **law is reasonable, fair and just.**

INDIAN POLITY

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21



**Protection to be given against
arbitrary legislative action as well**

10 In other words, it has introduced the American Expression “due process of Law”.

11 In effect, the protection under Article 21 should be available not only against arbitrary executive action, but, also against arbitrary legislative action.

INDIAN POLITY

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21



Indian farmers impoverished to a huge extent must be able to lead a life with dignity

12 Further, the court held that the “Right to Life” as embodied in Article 21 **is not merely confined to animal existence or survival but it includes within its ambit the right to live with human dignity** and all those aspects of life which go to make a man’s life meaningful, complete and worth living.

13 It also ruled that the expression “Personal Liberty” in Article 21 is of the widest amplitude and it covers a variety of rights that go to constitute the personal liberties of a man.

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21

The minority view of the Gopalan case i.e. “the most important fundamental right to life and personal liberty was *thrown at the mercy of the legislative majorities*” was again brought to the forefront in Maneka’s case. This case has categorically laid down the following propositions:

- a) *Art. 19 and 21 are not water-tight compartments.* On the other hand, the expression of ‘personal liberty’ in Art.21 is of the widest amplitude covering a variety of rights of which some have been included in Art. 19 and given additional protection. Hence, to put simply, there may be some overlapping between Art 19 and 21.
- b) In the result, a law coming under Art.21 must also satisfy the requirements of Art. 19. In other words, *a law made by the State which seeks to deprive a person of his personal liberty must prescribe a procedure for such deprivation which must not be arbitrary, unfair or unreasonable.*
- c) Once the test of reasonableness is imported to determine the validity of a law depriving a person of his liberty, it follows that such law shall be invalid *if it violates the principles of natural justice.*

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21

The Supreme Court has reaffirmed its judgment in the Menaka Case in the subsequent cases. It has declared the following Rights as part of Article 21:

1. Right to Live with human dignity
2. Right to decent environment including pollution free water and air and protection against hazardous industries.
3. Right to livelihood
4. Right to privacy
5. Right to Shelter
6. Right to Health
7. Right to Free Education up to 14 years of age.

8. Right to free legal aid
9. Right against solitary confinement
10. Right to speedy trial
11. Right against handcuffing
12. Right against inhuman treatment
13. Right against delayed execution
14. Right to travel abroad
15. Right against bonded labor
16. Right against custodial harassment

INDIAN POLITY

FUNDAMENTAL RIGHTS

PROTECTION OF LIFE AND PERSONAL LIBERTY

ARTICLE 21

- 17) Right to emergency medical aid
- 18) Right to timely medical treatment in Government Hospital.
- 19) Right not to be driven out of a State.
- 20) Right to fair trial.
- 21) Right of prisoner to have necessities of life
- 22) Right of women to be treated with decency and dignity
- 23) Right against public hanging.
- 24) Right to hearing
- 25) Right to information

- 26) Right to Reputation
- 27) Right of appeal from a judgment of conviction
- 28) Right to Social Security and protection of the family
- 29) Right to social and economic justice and empowerment
- 30) Right against bar fetters
- 31) Right to appropriate life insurance policy
- 32) Right to sleep
- 33) Right to freedom from noise pollution
- 34) Right to electricity.

**THINK ABOUT THESE IMPORTANT FACETS OF ARTICLE 21 IN THE
EXAMINATION POINT OF VIEW ESPECIALLY FOR GS-2 PAPER?**

1. Custodial death and human rights protection
2. SC in Shatrughan Chauhan case: Delay in execution of death sentence attributes to torture
3. Right to die with dignity; Aruna Shanbaug case; Passive Euthanasia.
4. Narco analysis and lie detector tests
5. Khap Panchayats and honour killing
6. What are the principles of natural justice? What do you mean by fair trial?

QUESTION

Consider the following statements

- 1) In the famous Gopalan case, the Supreme Court has taken wider interpretation of the Article 21, because of the expression procedure established by law
- 2) In the Menaka Gandhi case, the due process of law was followed and the Supreme Court held that personal liberty relates to only the liberty of the person or the body of the individual.



Learning Space

Which of the statements given above are correct

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 & 2 | d) Neither 1 nor 2 |

Correct Answer: D

Fundamental Rights

ARTICLE 21

Right to Life and Personal Liberty

Procedure Established by Law

Due Process of Law

1. Gopalan case (1950)

2. Menaka Gandhi case (1978)

EXPLANATION

- In the famous Gopalan case, Article 21 was taken as a narrow interpretation and not a wider interpretation, because it was available only against arbitrary executive action and not from arbitrary legislative action. This was later corrected in Maneka case.
- The 2nd Statement is also wrong, because in the Maneka case, the Supreme Court took a wider interpretation and it extended the ambit of Article 21 . It said that along with personal liberty, Article 21 guarantees every individual the right to live with human dignity which makes a man's life meaningful, complete and worth living.

GOPALAN CASE

- No person shall be deprived of his life or personal liberty except according to **procedure established by law**
- “Procedure established by law” – this is the **principle flaw** of the judgement
- Held that article 21 available only against arbitrary executive action and not from arbitrary legislative action.
- **Narrow interpretation** of the Constitution

MANEKA GANDHI CASE

- Ruled that right to life & personal liberty of a person can be deprived by a law provided the procedure prescribed by **that law is reasonable, fair and just.**
- In other words, it has introduced the American expression ‘**due process of law**’
- Article 21 should be available not only against arbitrary executive action but also against arbitrary legislative action.
- **Widest possible amplitude given to Article 21**

QUESTION

Consider the following statements regarding the Article 21

- 1) Right to Sleep is a part of Article 21
- 2) Protection under Article 21 is available only against arbitrary executive action and not from arbitrary legislative action



Learning Space

Which of the statements given above are correct

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 & 2 | d) Neither 1 nor 2 |

Correct answer: A



EXPLANATION

- Right to Sleep has been recently added as a fundamental right in Article 21.
- Statement 2 is wrong, this view was held in the famous Gopalan case. However, this was later corrected in the Maneka case. Here it was said that the protection would be available not only against arbitrary executive action, but also against arbitrary legislative action

DO YOU KNOW?

This ruling was in response to the police action on a **sleeping crowd** at **Baba Ramdev's rally** at **Ramlila Maidan!**

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

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For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
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